DESIGN-BUILD

FIXED PRICE CONSTRUCTION CONTRACT

for

NORTHBROOK SPORTS CENTER
902-733

Draft # Five

Date: 11/08/07

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DESIGN-BUILD
FIXED PRICE CONSTRUCTION CONTRACT

This Contract, made this 8th day of October, 2007, by and between RYAN COMPANIES US, INC., a Minnesota corporation (hereinafter called "Design-Builder"), and North Shore Ice Arena, an Illinois Limited Liability Corporation (hereinafter called "Owner");

Witnesseth that, in consideration of the mutual covenants and agreements contained herein, Design-Builder and Owner hereby agree as follows:

Article 1 - Scope of the Project

Design-Builder shall furnish all of the labor, materials, equipment and all of the services necessary for the design and construction of an approximately 47,321 g.s.f. ice rink facility and related improvements to be located at Real Estate Parcel EC-2C in the Techny Land Development, Northbrook, Illinois, in accordance with the drawings, scope document and any other materials described on Exhibit A attached hereto and the final drawings and specifications to be prepared based thereon (hereinafter referred to as the "Project"). Both the design and construction of the Project shall be undertaken with a standard of care, skill and workmanship throughout, consistent with applicable industry standards in the area in which the Project is located. Within fourteen business days from the date hereof, Design-Builder shall submit to Owner for its approval final drawings and specifications setting forth in detail the requirements for construction of the Project. Such final drawings and specifications shall be in substantial accordance with the documents described on Exhibit A and shall be prepared and certified by architects or engineers in their respective disciplines, selected by Design-Builder, who are licensed in the state where the Project is located. Design-Builder warrants that such final drawings and specifications will comply with all applicable building codes, laws, ordinances and regulations in effect and enforced as of the date of this Contract. Owner shall furnish to Design-Builder, in a timely manner, any necessary program or design information regarding Owner's needs or requirements for the Project and for any work to be performed by separate contractors working directly for Owner. Design-Builder shall be entitled to rely on the accuracy and completeness of such information in the design of the Project. Additional design services for space planning of moveable office work stations, design of custom furniture, selection of furnishings, artwork and accessories, and inventorying of existing furniture and equipment are not within the scope of the services to be provided by Design-Builder pursuant to this Contract and must be separately contracted for in writing. Design-Builder's rates for such additional design services (performed by Design-Builder's personnel) are set forth in Exhibit C attached hereto. When said final drawings and specifications have been approved by Owner and Design-Builder, they shall be signed or otherwise approved in writing by their appointed

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CA LICENSE 842487; FL LICENSE CGC 1506553; OR LICENSE CCB 151182;
WA LICENSE RYANCUMBRIR; CHICAGO, IL LICENSE CCD4651A

representatives and shall supersede the preliminary drawings, scope document and any other materials described on Exhibit A. Owner agrees that it will not unreasonably withhold its approval and will not act in any arbitrary or capricious manner with respect to approval of such final drawings and specifications so long as the same are in substantial accordance with the documents set forth in Exhibit A. If final drawings and specifications for the Project have not been approved by Owner and Design-Builder within ten days after the first submittal thereof by Design-Builder, then either party may terminate this Contract by giving written notice thereof to the other party. In the event of such termination, whether by Owner or Design-Builder, Owner shall within 10 days thereafter pay to Design-Builder all costs (including Design-Builder's personnel costs at the rates set forth in Exhibit C and all out-of-pocket costs) which Design-Builder has incurred in developing the preliminary and proposed final drawings and specifications. Upon receipt of such payment, Design-Builder shall deliver to Owner uncertified copies of such proposed final drawings and specifications. In addition, Owner shall pay Design-Builder for any other expenses incurred by Design-Builder that Owner has given Design-Builder written authorization to incur.

Article 2 - Time of Completion

Design-Builder shall achieve Substantial Completion of the Project not later than August 1, 2008 ~~(130) business days after the date on which the building permit for the Project is issued~~. The Contract Sum and date of Substantial Completion are based upon the core and shell permit being issued no later than February 19, 2008 and building permit for the Project being issued no later than April 1, 2008 ~~March 4~~, 2008. Design-Builder shall apply for the building permit promptly after the final drawings and specifications have been approved by Owner and Design-Builder. However, if through no fault of Design-Builder, the building permit have not been issued by the applicable date, then the Contract Sum shall be increased by the additional costs incurred by Design-Builder by reason of such delay and/or the date for Substantial Completion shall be extended by a period equal to such delay, in the event that the work has already started when delay happens. If Design-Builder is delayed at any time in the progress of the work by any act or neglect of Owner or of any agent or employee of Owner or of any separate contractor employed by Owner, changes ordered in the Project, labor disputes, fire or other casualty, unusual delay in deliveries, shortages or unavailability of fuel or materials, unusual weather, acts of God or public enemy, governmental action or non-action, or by any other cause beyond the control of Design-Builder, then the date by which Substantial Completion is to be achieved shall be extended by a period equal to such delay. Design-Builder shall not be entitled to a time extension for delays that are the result of Design-Builder's negligence. All claims for an extension of time shall be made in writing to Owner within 20 days after the occurrence of the cause of delay or shall be deemed waived, but in the case of a continuing cause of delay, only one claim shall be necessary. Substantial Completion shall be

deemed to have been achieved when construction is sufficiently complete so that Owner can utilize the Project for the purpose for which it is intended and a certificate of occupancy (temporary or permanent) has been issued for the Project. Owner and Design-Builder shall execute a Certificate of Substantial Completion certifying such date as the date of Substantial Completion. As of the date of Substantial Completion, Owner shall assume full responsibility for all utilities, insurance, security, and all other operational aspects of the Project.

Liquidated Damages. Design-Builder understands that if Substantial Completion of entire work is not attained by thirty (30) calendar days after the Scheduled Substantial Completion Date (the "LD Date"), Design-Builder shall pay Owner Three Thousand Seven Hundred Dollars ($3,700) as liquidated damages, and not as a penalty, for each day that the Substantial Completion extends beyond the LD Date. The liquidated damages provided herein shall be in lieu of all liability for any and all extra costs, losses, expenses, claims, penalties and any other damages, whether special or consequential, and of whatsoever nature incurred by Owner which are occasioned by any delay in achieving Substantial Completion of the entire work.

Article 3 - Contract Sum

Owner shall pay Design-Builder for the performance of this Contract, subject to additions and deductions as provided for herein, in current funds, the Contract Sum of Seven Million Seven Hundred Forty-Five Thousand Five Hundred Ninety-Eight Dollars ($7,745,598.00).

Article 4 - Payment of Contract Sum

(a) Progress Payments. Owner shall make payments on account of the Contract Sum as follows:

(i) Design-Builder shall submit to Owner, on or about the first day of each month, an Application for Payment for the value of the work completed (including materials suitably stored on the site) based upon the Schedule of Values attached hereto as Exhibit B and the percentage of completion of each item thereon. If no Schedule of Values is attached hereto, Design-Builder shall submit one to Owner prior to submitting its first Application for Payment.

(ii) Upon receipt of each Application for Payment, Owner shall have the right to inspect the Project to confirm that Design-Builder's Application reflects the value of work actually completed. If Owner discovers that the work actually completed differs from that represented on the Application for Payment, or the work is defective or does not comply with the requirements of this Contract, Owner may

withhold such sums as it reasonably deems necessary in light of the work actually completed until the work is completed or the defect is remedied.

(iii) Within 10 days after receipt of each Application for Payment, Owner shall pay to Design-Builder the entire amount thereof, subject to possible withholding as provided above; except that a retainage of 5% of the amount set forth in each Application for Payment shall be withheld. Such payment shall be made in the form of a wire transfer. No payment to Design-Builder shall constitute an acceptance of any work not in accordance with the requirements of this Contract.

(iv) Upon receipt of each payment from Owner, Design-Builder shall deliver to Owner its lien waiver in the amount of such payment. If requested by Owner, prior to receipt of the second and each succeeding payment, Design-Builder shall deliver to Owner lien waivers from its subcontractors and suppliers for the work covered by the previous payment received from Owner. Design-Builder guarantees that title to all work, materials and equipment covered by an Application for Payment, whether incorporated into the Project or not, will pass to Owner free and clear of all liens, claims, security interests and encumbrances upon the receipt of such payment by Design-Builder. Design-Builder agrees to pay its suppliers and subcontractors promptly after receipt of payment from Owner.

(v) Purchase of FF&E. Notwithstanding anything to the contrary contained herein, if Design-Builder is required to purchase furnishings, fixtures or equipment ("FF&E") relating to the operation of the Owner's business at the Project (i.e. that are not required for the construction of the building that is a part of the Project) and the payment terms with the vendors of such FF&E are different from those provided for herein, then Owner shall make payments to Design-Builder for such FF&E in the amounts and at the times that payments are due from Design-Builder pursuant to the terms of the contracts entered into by Design-Builder for the purchase of such FF&E. Owner further agrees to guaranty payment of the amounts due under such FF&E purchase contracts if required by the FF&E vendors.

(b) Punch List Work. Upon Substantial Completion of the Project by Design-Builder, Design-Builder and Owner shall jointly inspect the Project. If there remain "punch list" items to be completed, Design-Builder and Owner shall list such items and Design-Builder shall complete said items within 45 ~~30~~ days thereof, ~~unless Design-Builder is unable to~~

~~complete such items due to weather conditions, unavailability of materials or other conditions beyond the control of Design-Builder.~~

(c) Final Payment. The unpaid balance of the Contract Sum, including all sums retained pursuant to Paragraph 4 (a) (iii) hereof, shall be due and payable within 10 days after the date of Substantial Completion of the Project. Final payment shall be made simultaneously with the furnishing of a lien waiver from the Design-Builder and lien waivers from its subcontractors and suppliers for all sums paid to Design-Builder. Owner may withhold a sum equal to 150% of the estimated cost of completing any unfinished work. Thereafter, Owner shall pay to Design-Builder, on a monthly basis, the amount withheld for unfinished items as each item is completed. The making of final payment shall not constitute a release of claims that Owner may have against Design-Builder, except for claims or disputes that have been previously resolved "in writing". As a condition for final payment, final lien waiver will be provided by Ryan Companies US, Inc.

(d) Liens. Design-Builder shall, at all times, keep the Project free of liens arising out of the work performed pursuant to this Contract for which Design-Builder has been paid. If any such liens are filed, Design-Builder shall, within 14 days after notice of such filing, either:

(i) satisfy such lien, or

(ii) post a bond with Owner in an amount equal to 150% of the amount of such lien.

(e) Late Payment. In the event that any payment by Owner to Design-Builder is not paid when due, Owner shall pay interest on said unpaid amount from the date due to and including the date of payment at a variable rate equal to 3% per annum in excess of the rate of interest from time to time publicly announced by U.S. Bank National Association, Minneapolis, Minnesota, as its reference rate, or such lesser rate as may be the maximum rate permitted by law.

(f) Owner Financing. Owner shall, at the request of Design-Builder, prior to execution of this Contract and promptly upon Design-Builder's request thereafter, furnish to Design-Builder reasonable evidence that financial arrangements have been made to fulfill Owner's obligations under this Contract.

Article 5 - Bond

Upon Owner's request at any time prior to commencement of construction, Design-Builder shall furnish a surety bond for its performance of this Contract and the payment of all obligations to subcontractors arising hereunder. If such bond is requested, the Contract Sum shall be increased by the full amount of the premium therefor.

Article 6 - Changes in the Project

(a) Owner, without invalidating this Contract, may request changes in the Project within the general scope of this Contract, consisting of additions, deletions, alterations or other modifications, with the Contract Sum and the date for Substantial Completion to be adjusted appropriately. All changes in the Project shall be made only pursuant to a written Change Order signed by Owner and Design-Builder setting forth any adjustment to the Contract Sum and date for Substantial Completion. If applicable, the adjustment to the Contract Sum shall be determined by application of the unit prices set forth in the specifications. Otherwise, the adjustments shall be agreed upon by Design-Builder and Owner before Design-Builder proceeds on any such changes, additions or alterations.

(b) If, during the design process, Owner requests a substantial change to the design of the Project that Owner has previously approved or given Design-Builder direction to perform, the Contract Sum shall be increased by the amount of Design-Builder's additional design costs to perform such change. Design-Builder shall notify Owner of such costs and a Change Order shall be entered into prior to making such change.

(c) If, after the final drawings and specifications have been approved by Owner and Design-Builder, Owner requests Design-Builder to submit a proposal for a change in the Project and then elects not to proceed with the change, a Change Order shall be issued to reimburse Design-Builder for any costs incurred for design services in connection with proposed revisions to the final drawings and specifications.

(d) The rates in Exhibit C shall apply to all changes that involve Design-Builder's design personnel.

Article 7 - Correction of the Work

(a) Rejected Work. Design-Builder shall, at its own expense, promptly correct work rejected by Owner that does not conform to the requirements of this Contract.

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CA LICENSE 942487; FL LICENSE CGC 1506553; OR LICENSE CCB101162;
WA LICENSE RYANCO[illegible]; CHICAGO, IL LICENSE GC04634A

(b) Warranty Period. If, within one year after the date of Substantial Completion of the Project, or within such longer period of time as may be prescribed by law or by the terms of any applicable special warranty contained in the specifications, any of the work is found to be defective due to faulty workmanship or materials or not in accordance with the requirements of this Contract, and if within such period Owner notifies Design-Builder thereof in writing, then Design-Builder shall correct the same at its expense promptly after receipt of such notice. Owner shall notify Design-Builder promptly after discovery of the condition. Establishment of this one year warranty period relates only to the specific obligation of Design-Builder to correct the work, and shall in no way affect the time within which Design-Builder's obligation to comply with the requirements of this Contract may sought to be enforced. Prior to the expiration of this warranty period, representatives of Owner and Design-Builder shall inspect the Project and jointly determine if any work does not conform to the requirements of this Contract, and Design-Builder shall promptly correct such non-conforming work, provided that such non-conforming work is not the result of abuse, neglect or improper or inadequate care and maintenance by Owner.

Article 8 - Insurance

(a) Design-Builder's Liability Insurance. Design-Builder shall purchase and maintain such insurance as will protect it (and, where stated, Owner) from the claims set forth below which may arise out of the performance of this Contract, whether such performance be by Design-Builder or by any subcontractor of Design-Builder or by anyone directly or indirectly employed by any of them or by anyone for whose acts any of them may be liable:

(i) Worker's Compensation and Employer's Liability insurance for claims under workers' compensation, disability benefit and other similar employee benefit acts, in the amounts required by law and claims for damages arising out of bodily injury, occupational sickness or disease, or death of its employees, in the amounts specified below:

Insurance	Limits
Worker's Compensation	Statutory Requirement
Employer's Liability	$1,000,000

(ii) Commercial General Liability insurance for claims for damages arising out of bodily injury, sickness or disease, personal injury or death of any person other than its employees, and for damages arising out of injury to or destruction of tangible property (other than the Project), in the amount of $5,000,000 (including umbrella

coverage) per occurrence. Owner shall be named as an additional insured, including Winnetka Hockey Club and Wilmette Hockey Association, under such liability insurance policy to the extent of any liability arising out of Design-Builder's work. Such insurance policy shall include premises operations (including explosion, collapse and underground coverage), elevators (if applicable), independent contractors, completed operations (for not less than one year after the date of Substantial Completion) and broad form property damage coverage. This coverage will be primary and non-contributory over any insurance the Owner may maintain.

(iii) Automobile Liability insurance for claims for damages for bodily injury or death of a person or property damage arising out of the ownership, maintenance or use of all owned, hired and non-owned motor vehicles. The combined single liability limit for bodily injury and property damage shall be $5,000,000 (including umbrella coverage) per occurrence. This coverage will be primary and non-contributory over any insurance the Owner may maintain.

Contractor to provide renewal certificates as evidence of insurance prior to expiration of above referenced (WC, GL, Auto) policies.

Certificates of such insurance, showing such coverages to be in force, shall be furnished to Owner prior to commencement of construction.

(b) Builders Risk Insurance.

(i) The Project. Unless the Project consists of an addition to or alteration of an existing structure (in which case it shall be purchased and maintained by Owner), Design-Builder shall purchase and maintain, until the date of Substantial Completion, "all-risk" builder's risk insurance covering the Project in an amount not less than $6,894,000 ~~$5,655,346~~, and with a deductible amount not to exceed $2,500. The risk associated with such deductible shall be borne entirely by Owner. Such insurance shall be provided on a non-reporting, completed value basis. Design-Builder's subcontractors and suppliers and Owner shall be named as additional insureds under such policy. Any insured loss under such policy shall be adjusted with Owner and Design-Builder and made payable to both Owner and Design-Builder (subject to any applicable mortgagee clause) as trustee for the insureds, as their interests may appear. A certificate of

insurance showing such coverage to be in force shall be furnished to Owner prior to commencement of construction. The Contract Sum shall be increased by the amount of all costs incurred by Design-Builder in repairing and/or replacing work which is damaged or destroyed by fire or other casualty, less insurance proceeds received by Design-Builder.

(ii) Owner's Property, Equipment and Furnishings. Owner shall be solely responsible for insuring any of Owner's material, equipment or furnishings that are brought onto the Project Site. In addition, Owner shall provide builders risk insurance for the work performed by any of Owner's direct contractors. Design-Builder shall have no responsibility to provide insurance for any of the above items.

(c) Waiver of Subrogation. Owner and Design-Builder waive all rights against each other, and against their respective agents, employees and subcontractors, for damages caused by perils covered by the insurance to be maintained pursuant to Paragraph 8(b) hereof, except such rights as they may have to the proceeds of such insurance. If, during the Project construction period, the Owner insures properties, real or personal or both, at or adjacent to the site by property insurance under policies separate from those insuring the Project, or if after final payment property insurance is to be provided on the completed Project through a policy or policies other than those insuring the Project during the construction period, the Owner shall waive all rights against the Design-Builder, and against its respective agents, employees and subcontractors, for damages caused by perils covered by this separate property insurance. If the policy of insurance to be provided pursuant to Paragraph 8(b) hereof, or any separate property insurance, require an endorsement for continued coverage where there is a waiver of subrogation, the party providing such insurance shall cause such policy to be so endorsed.

(d) Notice of Cancellation. All insurance policies provided by either party to this Contract shall contain a provision requiring the insurer to give a minimum of 30 days advance written notice to the other party of cancellation or modification of the terms of the policy.

Article 9 - Termination of the Contract.

(a) Termination by Design-Builder If work on the Project is stopped (through no fault of Design-Builder) for a period of 30 days under order of any court or other public authority

having jurisdiction, or as a result of any governmental act such as a declaration of national emergency making fuels or materials unavailable, or if Owner ~~wrongfully~~ fails to make any payment to Design-Builder within ~~20~~ 30 days after Design-Builder gives Owner written notice of such non-payment, Design-Builder may stop work and terminate this Contract and recover from Owner payment for all design costs, all work completed, actual loss sustained upon any materials, equipment, tools and machinery, all of Design-Builder's overhead costs and reasonable anticipated profit and such other damages as Design-Builder may sustain by reason thereof. If the termination is caused by anything other than a default by Owner, Design-Builder may recover all of the above except that Design-Builder shall only be entitled to receive a proportionate share of its reasonable anticipated profit, based upon the work performed.

(b) Termination by Owner. If Design-Builder ~~materially~~ breaches this Contract, is adjudged a bankrupt, or if it makes a general assignment for the benefit of its creditors, or if a receiver is appointed on account of its insolvency, or if it persistently or repeatedly refuses or fails, except in cases for which extension of time is provided, to supply enough properly skilled workers or proper materials, or if it fails to make prompt payment to subcontractors or for materials or labor, or disregards laws, ordinances, rules, regulations or orders of any public authority having jurisdiction, and if such breach or other condition continues for 10 days after written notice thereof by Owner to Design-Builder, then Owner may, without prejudice to any right or remedy, terminate this Contract and take possession of the site and of all materials, equipment, tools, construction equipment and machinery thereon owned by Design-Builder and may finish the Project by whatever method it may deem expedient. In such case Design-Builder shall not be entitled to receive any further payment. If Owner's costs to complete the Project exceed the unpaid balance of the Contract Sum, Design-Builder shall pay the difference to Owner. This obligation for payment shall survive the termination of this Contract. If Owner so terminates this Contract, Design-Builder shall, upon Owner's request, immediately assign all subcontracts and purchase orders to Owner so that Owner may expeditiously complete the Project.

(c) Termination for Convenience. Owner may, at any time and in its sole discretion, terminate this Contract at its convenience. Should Owner so terminate this Contract, Owner shall pay to Design-Builder all amounts due pursuant to Paragraph 9(a) hereof, including Design-Builder's overhead costs and reasonably anticipated profit and such other damages as Design-Builder may sustain.

Article 10 - Miscellaneous Provisions.

(a) Owner and Design-Builder Representatives. Owner and Design-Builder shall each appoint a representative with full authority to act on behalf of each party. Owner's representative shall be _____ and Design-Builder's representative shall be Erik Magsamen. Communication between the parties shall, whenever possible, be accomplished by the above representatives.

(b) Ownership of Design Documents. The drawings, specifications and other design documents prepared by Design-Builder or its design consultants pursuant to this Contract are the property of Design-Builder or its design consultants and Design-Builder or its design consultants shall retain all common law, statutory and other reserved rights, including the copyright thereto. However, Owner shall have a "perpetual" royalty-free license to reproduce, distribute and otherwise use such drawings, specifications and other design documents for additions to or remodeling of the Project, provided that Owner shall indemnify, defend and hold harmless Design-Builder and its design consultants from any claims and liabilities arising from such use thereof.

(c) Survey and Easements. Owner shall furnish a current ALTA/ACSM land title survey of the Project site showing the boundaries, dimensions and topography thereof and the location of all utilities, easements and other restrictions. Owner shall obtain all easements necessary for access to the Project site, including easements for installation and maintenance of utilities.

(d) Supervision and Construction Procedures. Design-Builder shall supervise and direct the Project and shall be solely responsible for all construction means, methods, techniques, sequences and procedures, and for coordinating all portions of the work to be performed by Design-Builder under this Contract. Design-Builder shall employ a competent superintendent who shall be stationed at the Project site during the progress of the Project. Design-Builder shall be responsible to Owner for the acts and omissions of all of its employees and all subcontractors of Design-Builder and their agents and employees. Design-Builder shall at all times enforce strict discipline and good order among its employees and other persons carrying out the work to be performed by Design-Builder under this Contract and shall not employ on the Project any unfit person or anyone not skilled in the assigned task.

(e) Labor and Materials. Unless otherwise provided in this Contract, all materials used in the Project shall be new. Design-Builder shall provide and pay for all labor, services, materials, equipment, tools, machinery, utilities, transportation and other facilities and services necessary for the proper execution and completion of the Project.

(f) Quality Assurance and Testing. Design-Builder shall establish and implement a written quality assurance and testing program that is appropriate for the Project. Owner shall have the right to review such program and receive copies of any test reports, if requested. Owner shall have the right, at Owner's expense, to perform any additional testing or inspection that it deems necessary. If such additional testing reveals the presence of defective or non-conforming work, Design-Builder shall pay the cost of such testing.

(g) Taxes, Permits, Fees and Bonds. Design-Builder shall pay all sales, consumer, gross receipts, use and other similar taxes required by law and imposed, as of the date of this Contract, upon the labor and materials provided by Design-Builder or any of its subcontractors. Design-Builder shall be entitled to an increase in the Contract Sum to the extent that an increase in the aggregate of such taxes payable by Design-Builder hereunder results from any change in the laws, enacted after the date of this Contract, creating or modifying such taxes. Design-Builder shall secure and pay for the building permit and all other governmental permits (except zoning and land use permits and fees), licenses and inspections necessary for the proper execution and completion of the Project, including utility availability and hook-up charges, which are legally required as of the date of this Contract. Design-Builder shall not be required to pay any special assessment charges for public improvements and other municipal charges for the payment of capital improvements. Owner shall be responsible for any required platting or subdivision and shall pay all fees in connection therewith; and Owner will also be responsible for all permits, licenses and fees relating to the operation or use (as opposed to the construction) of the Project, including (but not limited to) storm water discharge permits for the operation of the facility and air emission permits. Owner shall provide any bonds, guarantees or other forms of security required by local governmental units having jurisdiction over the Project relating to on-site or off-site improvements.

(h) Royalties and Patents. Design-Builder shall pay all royalties and license fees, and shall defend all suits or claims for infringement of any patent rights and save Owner harmless from loss on account thereof and shall survive termination of the Agreement.

(i) Concealed Conditions. Should there be discovered unknown physical conditions below the surface of the ground or concealed conditions in an existing structure, differing materially from those ordinarily encountered in work of the character provided for in this Contract, or should the same be at variance with the conditions indicated in the drawings and specifications for the Project, then the date by which Substantial Completion is to be achieved shall be extended by the period of the delay resulting therefrom and the Contract Sum shall be increased by the amount of all costs incurred by Design-Builder by reason thereof, provided that a written claim therefor is submitted to Owner within 20 days after the first observance of the conditions by Design-Builder. Design-Builder has reviewed the subsurface exploration report prepared by Terracon, dated February 9, 2007 (the "Soils Report"), and relied on this information in designing the Project and establishing the Contract Sum and the date for Substantial Completion. Actual subsurface conditions that materially differ from those identified in the Soils Report, or from those which are reasonably inferable therefrom, shall constitute a concealed condition under this provision. Design-Builder acknowledges that it has familiarized itself with the Project site and taken what it believes to be a reasonable number of soil borings.

(j) Cleaning Up. Design-Builder shall at all times keep the Project site free from accumulation of waste materials or rubbish caused by its operations. At Substantial Completion of the Project, Design-Builder shall remove all of its surplus materials, rubbish, tools, equipment and machinery from the Project site, and shall clean all glass surfaces and leave the Project in a "broom clean" condition. If Design-Builder fails to clean up at the completion of the Project, and such failure continues for 5 days after notice thereof to Design-Builder, Owner may perform such clean up and the cost thereof shall be deducted from the Contract Sum.

(k) Access. Owner and its representatives shall at all times have access to the Project, and Design-Builder shall permit and facilitate inspections of the Project by Owner and its representatives.

(l) Work by Owner. Owner shall have the right to perform work related to the Project with its own forces and to award separate contracts therefor, provided such work does not interfere with the work of Design-Builder. Owner shall not award contracts to any contractor who is not signatory to a collective bargaining agreement with a local AFL-CIO Building Trades Union without the written approval of Design-Builder. Owner will provide for the coordination of such separate work with the work of the Design-Builder, who shall cooperate therewith. Owner shall be

RDC712320 RESIDENTIAL; AZ ROC 195813 COMMERCIAL;
CA LICENSE 847487; FL LICENSE CGC 1508883; OR LICENSE CCB 181162;
WA LICENSE RYARCI990KK CHICAGO, IL LICENSE 6004631A

responsible to provide all necessary insurance for the work of such contractors. Owner agrees to cause its employees and any such separate contractors to abide by all federal, state and local safety laws and regulations and to comply with Design-Builder's safety program for the Project. Owner further agrees to insert the following language into all contracts it awards that involve work on the Project prior to the Date of Substantial Completion:

Indemnification. (Subcontractor or Vendor) agrees to assume the entire responsibility and liability for all damages or injury to all persons, whether employees or otherwise, and to all property, arising out of, resulting from, or in any manner connected with the performance of its work or occurring or resulting from the use by (Subcontractor or Vendor), its agents or employees, of materials, equipment, instrumentalities or other property, whether the same be owned by Ryan Companies US, Inc., (Subcontractor or Vendor), or third parties, and to the fullest extent permitted by law (Subcontractor or Vendor) agrees to defend, indemnify and save harmless Ryan Companies US, Inc. and their agents and employees, from and against all such claims and liabilities including, without limiting the generality of the foregoing, claims and liabilities for which Ryan Companies US, Inc. may be or be claimed to be liable, and to reimburse Ryan Companies US, Inc. for all legal fees and disbursements paid or incurred to enforce the provisions of this paragraph; and (Subcontractor or Vendor) further agrees to obtain, maintain and pay for such Commercial General Liability insurance coverage as will insure the provisions of this paragraph to the fullest extent available. (Subcontractor or Vendor) shall name Ryan Companies US, Inc. as an additional insured on (Subcontractor's or Vendor's) commercial general liability insurance policy and provide Ryan Companies US, Inc. with a certificate of insurance evidencing such coverage.

(m) Indemnification. To the fullest extent permitted by law, Design-Builder shall indemnify, defend and hold harmless Owner, its officers, directors, employees and agents, from and against all claims, suits, demands, damages, losses, liabilities and expenses, including reasonable attorneys' fees, arising out of or resulting from the performance of this Contract, **other than any such claim, damage, loss or expenses caused solely by the gross negligence or willful misconduct of Owner; and provided the indemnity obligation of Design-Builder under this Article 10(m) shall not exceed, in the aggregate, the amount of the Contract Sum set forth in Article 3, as such Contract Sum is finally adjusted under the terms and conditions of this Contract** ~~provided that any such claim, damage, loss or expenses (i) is attributable to bodily injury, sickness, disease or death, or to injury to or destruction of tangible property (other than the Project itself), and (ii) is caused or alleged to be caused in whole or in part by any negligent or~~

~~willful act or omission of Design-Builder, any subcontractor of Design-Builder, anyone directly or indirectly employed by any of them, or anyone for whose acts any of them may be liable.~~ Owner shall notify Design-Builder of any claim under this indemnity promptly after Owner becomes aware of same, so as to avoid prejudice to Design-Builder; and Design-Builder shall have the right to defend in any action with respect to such claim with counsel reasonably acceptable to Owner. This article 10(m) shall survive the termination of the contract.

(n) Notices. All notices permitted or required by this Contract shall be in writing and shall be deemed to have been given when personally delivered to the respective persons whose name appears below or when deposited in the United States mails, certified or registered mail, postage prepaid and addressed as follows:

If to Design-Builder: Ryan Companies US, Inc.
55 Shuman Boulevard,
Suite 800
Naperville, Illinois 60563
Attention: Jim Herbst

If to Owner: North Shore Ice Arena, LLC
c/o Alan Roth
Wildman Harrold LLP
Attention: 225 W. Wacker Suite 2600
Chicago, ILLINOIS 60606

Either party may change the address for mailing of notices to it hereunder and/or the person to receive such notices by giving 10 days written notice thereof to the other party in the manner above provided.

(o) Governing Law. This Contract shall be governed by and construed in accordance with the laws of the state where the project is located.

(p) Binding Effect and Assignment. This Contract shall be binding upon and shall inure to the benefit of the parties hereto and their respective successors and assigns. Neither party to this Contract shall assign any interest in this Contract without the written consent of the other party. No permitted assignment by either party, however, shall release it from primary liability for the performance of its obligations hereunder.

(q) Hazardous Substances, Buried Tanks and Wells. Owner represents and warrants to Design-Builder that Owner has no knowledge of the existence on the Project site of any so-called "hazardous or toxic substances" (including, but not limited to, mold, mildew and other similar microbial conditions), buried tanks or wells as defined and/or regulated by federal, state or local laws or regulations. Should any such substances, tanks or wells be encountered in the performance of the work, Design-Builder shall immediately cease work and notify Owner thereof. Owner shall promptly thereafter cause any such substances, tanks or wells to be removed in accordance with all applicable laws. Design-Builder shall not be required to resume work until such substances, tanks or wells have been so removed; and Owner shall provide Design-Builder with written evidence of compliance with applicable laws in the removal of such substances, tanks or wells as Design-Builder may reasonably request. If the remediation of the hazardous substances, buried tanks or wells only affects a portion of the Project site, Design-Builder agrees to continue working on portions of the Project that are unaffected so long as such work does not present a safety hazard to workers on the Project. The date by which Substantial Completion is to be achieved shall be extended by the period of delay resulting therefrom and the Contract Sum shall be increased by any additional costs reasonably incurred by Design-Builder due to such cessation and delay. If such substances, tanks or wells have not been removed as required herein within 30 days from the date of Design-Builder's notice to Owner, then Design-Builder may terminate this Contract by written notice to Owner and recover from Owner the amounts provided in Paragraph 9(a). Irrespective of whether or not this Contract shall have been so terminated by Design-Builder, Owner shall indemnify, defend and hold harmless Design-Builder and all of its employees and subcontractors from and against any and all liability, loss, cost and expense arising by reason of the presence of such hazardous substances, tanks or wells on the Project site, ***except such as may result from the gross negligence of Design-Builder or its subcontractors.***

(r) Consequential Damages. Design-Builder and Owner waive claims against each other for consequential damages arising out of or relating to this Contract. This mutual waiver includes:

(i) damages incurred by Owner for rental expenses, for losses of use, income, profit, financing, business and reputation, and for loss of management or employee productivity or of the services of such persons; and

(ii) damages incurred by Design-Builder for principal office expenses including the compensation of personnel stationed there, for losses of financing,

business and reputation, and for loss of profit except anticipated profit arising directly from the Work.

This mutual waiver is applicable, without limitation, to all consequential damages due to either party's termination in accordance with Article 9.

(s) Project Closeout. Prior to receiving final payment, Design-Builder shall furnish Owner with the following:

(i) One operation and maintenance manual;
(ii) One set of record/as-built drawings (blue prints) for the entire Project;
(iii) Any special warranties or guarantees that Design-Builder secures;
(iv) A project directory listing all names, addresses and phone numbers of Design-Builder's subcontractors who worked on the Project.

(t) Entire Agreement: This Contract represents the entire and integrated agreement between Owner and Design-Builder pertaining to the Project, and supersedes all prior negotiations, representations or agreements, whether written or oral. This Contract may be amended only by a written instrument signed by both Owner and Design-Builder.

(u) Allowances. Design-Builder has included in the contract sum the allowances as stated in the attached Exhibit "A". ~~shall include in the Contract Sum all allowances stated in the drawings and specifications~~. Unless specified otherwise herein, each allowance shall include all of Design-Builder's costs (labor, installation costs, materials, equipment, subcontractor costs, taxes, freight, etc.) for that portion of the Project (but no overhead and profit). Whenever the actual costs covered by the allowance are more or less than the allowance, the Contract Sum shall be adjusted accordingly by Change Order. ~~In the event that there are savings in the net sum of the allowance values, these savings will be divided between Owner and Design-Builder at 50% to each party.~~

(v) Addendum. The terms and provisions contained in any Addendum or Exhibit which is attached hereto are incorporated herein by reference and made a part of this Contract.

Article 11 - Arbitration and Legal Costs

(a) Arbitration. All claims or disputes between the parties to this Contract arising out of or relating to this Contract, or the breach thereof, shall be decided by arbitration in accordance with the Construction Industry Arbitration Rules of the American Arbitration Association then in effect, unless the parties hereafter agree otherwise. This provision shall be specifically enforceable in any court of competent jurisdiction. Notice of demand for arbitration shall be filed in writing with the other party to this Contract and with the American Arbitration Association. The demand shall be made within a reasonable time after the dispute has arisen. In no event shall the demand for arbitration be made after the date when the applicable statute of limitations would bar institution of a legal or equitable proceeding based on such claim, dispute or other matter in question. All arbitration proceedings shall be conducted in Chicago, Illinois ~~Minneapolis, Minnesota, and prehearing discovery in the time and manner provided by the then-effective Federal Rules of Civil Procedure shall be permitted.~~ The award rendered by the arbitrator or arbitrators shall be final, and judgment may be entered upon it in accordance with applicable law in any court having jurisdiction. Unless otherwise agreed in writing, Design-Builder shall carry on the work and maintain its progress during any arbitration proceedings, and Owner shall continue to make payments to Design-Builder in accordance with the terms of this Contract except for the specific items that are in dispute.

(b) Legal Costs. If either party hereto shall file for arbitration or bring suit against the other party to enforce the terms of this Contract, the losing party shall pay to the prevailing party that percentage of the prevailing party's costs and expenses incurred in such action, including reasonable attorney's fees, in an amount equal to the percentage that the amount of the judgment or award received by the prevailing party bears to the total amount claimed by such party (but in no event more than one hundred percent (100%) of such costs and expenses); provided that if the prevailing party has previously rejected a bona fide written settlement offer from the other party in an amount greater than the amount of the judgment or award received, then the prevailing party shall not be entitled to reimbursement for any of its costs and expenses.

Article 12 – Certain States.

If a Contract is governed by the laws of any of the following states, the following provisions shall be applicable thereto, and shall control over any other provisions of this Contract which are inconsistent therewith:

(a) California.

(i) License Requirements. Contractors are required by law to be licensed and regulated by the contractors' state license board which has jurisdiction to investigate complaints against contractors if a complaint regarding a patent act or omission is filed within four years of the date of the alleged violation. A complaint regarding a latent act or omission pertaining to structural defects must be filled within ten years of the date of the alleged violation. Any questions concerning a contractor may be referred to the registrar, contractors' state license board, P.O. Box 26000, Sacramento, California 95826.

IN WITNESS WHEREOF, Design-Builder and Owner have executed this Contract as of the date first above written.

OWNER:
NORTH SHORE ICE ARENA, LLC

By: _____
(Signature)
MANAGER
(Printed Name and Title)

DESIGN-BUILDER:
RYAN COMPANIES US, INC.

By: _____
(Signature)
PROJECT MANAGER V PRES
(Printed Name and Title)

Exhibit A

Preliminary Drawings, Scope Document and Other Documents

Exhibit "A"
Northbrook Sports Center
Scope of Work

- The tubing will be placed on combination tubing space/rebar supports that are fabricated from .145" wire and welded to 22Ga. base plates. These supports are placed on 3'0" centers down the length of the rink.
- Ice Floor Temperature Control: Supply and install a RTD in the floor that will cycle the refrigeration system based on actual ice temperature. This is connected by 2-wire shielded cable encased in PVC conduit. The signal operates a microprocessor that will cycle the refrigeration based upon ice temperature.
- Underground Main Piping: Supply and install 8" pre-insulated steel main piping. This piping will have field insulated fitting and/or weld joints.
- Refrigeration System: Indirect system utilizing R-134a primary refrigerant (This is a replacement refrigerant and is not affected by the phase out of R-22 and is not as dangerous as ammonia) and calcium chloride secondary refrigerant, and rated at 120 TR (nominal). The refrigeration unit is a Carrier 30HXC206M-6-CA that will cool 1000 USGPM from 18°F to 15°F.
- The secondary refrigeration system will have a main and a standby pump. The pumps will be Armstrong rated at 1000 USGPM @ 65'hd with a 21% CACL solution at 15°F. The pumps will have 30 hp premium efficiency motors.
- The tower will be a Baltimore Aircoil V-line or Evapco cooling tower with two 5 hp premium efficiency fan motors. There will be a remote sump fabricated from carbon steel plate with an epoxy coating. There will be a main and a standby condenser pump which will be an Armstrong rated at 325 USGPM @ 35'hd with a premium efficiency 7.5 hp motor.
- The heat reclaim system will utilize the condenser water as the heat source for the snow melt coil and the underfloor heat systems.
- The pumps for the snow melt pit coil and the underfloor heat will be Armstrong with 2 hp premium efficiency motors.
- All cold surfaces, both piping and equipment, will be insulated and will have a vapor barrier.
- The snowmelt coil will be installed in a pit constructed by others.
- Startup: Supply labor and material to check and test system. We will supply standby labor at the tie the owner makes the first ice sheet.
- Warranty: All labor and material is guaranteed for one year from the date of startup.

7. ICE MAKING – BY ICE BUILDERS, INC. – RINK #2

- 85' x 50' rink with a sand floor.
- Underfloor heat tubing will be installed in sand.
- The mains will be schedule 40 carbon steel (A53 GrB) with schedule 80 carbon steel (B106 Grb) serrated nipples connected to 1" PE3408 SDR15.5 polyethylene tubing held in place with two stainless steel gear clamps (Ideal) utilizing "Loctite 2" sealant at the serrations and spaced at 18" on center.
- Once the system has been installed and tested at 80 PSI with compressed air, it is to be covered with a 6" sand layer that is to be graded to +/- ½".
- Ice Floor: 3" rigid insulation, vapor barrier, and sand to F.F.E.
- The headers are fabricated of schedule 40 carbon steel (A53 GrB) with schedule 80 carbon steel (A106 GrB) serrated nipples connected to 1" PE3408 SDR 15.5 polyethylene tubing held in place with two stainless steel gear clamps (Ideal) utilizing "Loctite 2" sealant at the serrations and spaced at 31/2" on center.
- The tubing will be placed on combination tubing space/rebar supports that are fabricated from .145" wire and welded to 22Ga. base plates. These supports are placed on 3'0" centers down the length of the rink.
- Ice Floor Temperature Control: Supply and install a RTD in the floor that will cycle the refrigeration system based on actual ice temperature. This is connected by 2-wire shielded cable encased in PVC conduit. The signal operates a microprocessor that will cycle the refrigeration based upon ice temperature.

Exhibit "A"
Northbrook Sports Center
Scope of Work

Underground Main Piping: Supply and install 6" pre-insulated steel main piping. This piping will have field insulated fitting and/or weld joints.

Refrigeration System: The existing proposed Indirect system utilizing R-717 (Ammonia) primary refrigerant will be increased in capacity to 140 TR. The secondary refrigeration system will have a main and a standby pump. The pumps will be Armstrong rated at 400 USGPM @ 65' hd with a 21% CACL solution at 15°F. The pumps will have premium efficiency motors. The evaporative condenser will be increased in capacity to match the new refrigeration capacity. The remote sump will be increased in size to match the new evaporative condenser. The condenser water pumps will be increased in size to match the new evaporative condenser capacity. The heat reclaim system will be modified to include the capacity for the underfloor heat. We will supply a small electric boiler, coil and pump for the snow melt for the new rink. The snow melt coil will be installed in a pit constructed by others.

Exclusions: Furniture, window blinds, phone system, data and phone wiring, exercise equipment, fireplace(s), left turn lane work on Founders Drive

Exhibit "A"
Northbrook Sports Center
Scope of Work

1. **BUILDING SIZE:** 47,321 gross square feet

2. **LANDSITE SIZE:** ±5.00 acres

3. **PARKING** 158 cars,

4. **CEILING CLEARANCE:** 22'-8" clear in the ice rink, 13'-2" to bottom of steel in front/lobby portion of the building.

5. **DASHER BOARDS:**

- Rink Systems, Inc., 85' x 200' with 28' radius corners, Legacy Elite dasherboard system.
- 42" high x 6" wide, hot dip galvanized steel framework.
- Two 30' long x 5' deep players boxes on one side of rink with exist opening on back.
- Two 6' long penalty boxes, and one 8' long scorers box on opposite side of rink.
- Six 30" wide players/penalty gates with heavy duty hinges and double bar gate latches.
- Two 36" wide access gates with heavy duty hinges and double bar gate latch.
- One 10' wide double door equipment gate with heavy duty hinges, slide bar, and casters.
- Ice side pushbuttons on all gates with shielding.
- ½" thick white high density poly facing.
- ½" x 8" colored polyethylene kickplate.
- ¾" thick colored polyethylene caprail.
- 3/8" thick white polyethylene backer panels inside box section area complete with water bottle shelving.
- 5/8" thick x 6' high tempered glass shielding on ends & radius of rink.
- 1/2" thick x 6' high tempered glass shielding on sides of rink, except in front of players boxes. ½" thick x 6' high tempered glass shielding along sides, between, and behind box sections.
- Three safety corner post pads where shielding terminates.
- Two 9-1/2" wide x 27' long polyethylene players benches and two 9-1/2" wide x 6' long polyethylene penalty benches. Include galvanized steel support posts. Benches to be easily removable. 2 x 6 treated wood elevated flooring in box sections covered with ¾" plywood and loose laid 3/8" cut resistant rubber flooring. Includes raised coaches walkway.
- 1" x 18" x 96" polyethylene scorekeepers table with plated steel supports. Table to be easily removable.
- All necessary hardware to install Dasherboard sytem.
- Three year warranty.

6. **ICE MAKING – BY ICE BUILDERS, INC.**

- 200' x 85' rink with a sand floor.
- Underfloor heat tubing will be installed in sand.
- The mains will be schedule 40 carbon steel (A53 GrB) with schedule 80 carbon steel (B106 Grb) serrated nipples connected to 1" PE3408 SDR15.5 polyethylene tubing held in place with two stainless steel gear clamps (Ideal) utilizing "Loctite 2" sealant at the serrations and spaced at 18" on center.
- Once the system has been installed and tested at 80 PSI with compressed air, it is to be covered with a 6" sand layer that is to be graded to +/- ½".
- Ice Floor: 3" rigid insulation, vapor barrier, and sand to F.F.E.
- The headers are fabricated of schedule 40 carbon steel (A53 GrB) with schedule 80 carbon steel (A106 GrB) serrated nipples connected to 1" PE3408 SDR 15.5 polyethylene tubing held in place with two stainless steel gear clamps (Ideal) utilizing "Loctite 2" sealant at the serrations and spaced at 31/2" on center.

Exhibit "A"
Northbrook Sports Center
Allowances.

ALLOWANCES – TOTAL VALUE = $876,949

- $181,680 for permit costs based on construction costs.
- $139,569 for annexation fee.
- $139,120 for unsuitable soils
- $100,000 for bleachers.
- 100,000 for landscaping.
- $64,080 for Village Transportation Impact Fee
- $15,000 for ComEd connection charges.
- $15,000 for audio/visual system
- $12,500 for security
- $75,000 for kitchen equipment/design/health department fees
- $35,000 for building and interior signage

11/8/2007

Exhibit "A"
Northbrook Sports Center
Scope Drawings

1. L-1 Landscape Plan dated 8/30/07 prepared by Ives Ryan Group
2. L-2 Landscape Plan dated 8/30/07 prepared by Ives Ryan Group

CONSTRUCTION DOCUMENTS FOR SHELL PERMIT ONLY by Economou Partners dated 9/14/07

3. Title/Cover Page
4. Drawing A0.1 Notes & Abbreviations
5. Drawing A0.2 ADA Notes & Details
6. Drawing A1 Ground Floor Plan
7. Drawing A1A Ground Floor Mezzanine Egress Plan
8. Drawing A2 Enlarged Floor Plans
9. Drawing A3 Ground Floor & Mezzanine Floor Covering Plan
10. Drawing A4 Reflected Ceiling Plan
11. Drawing A5 Interior Elevations
12. Drawing A6 Stairs & Railing Details
13. Drawing A7 Exterior Elevations
14. Drawing A8 Door and Window Schedule
15. Drawing A9 Window Schedule, Details & Notes
16. Drawing A9.1 Room Finish Schedule
17. Drawing A10 Wall Sections
18. Drawing A11 Wall Sections
19. Drawing A12 Roof Plan
20. Drawing A13 Wall Types – U.L. Assembly

STAMPED ISSUED FOR PERMIT STRUCTURAL DRAWINGS by J.V. Henik dated 9/17/07

21. Drawing S-1 General Notes
22. Drawing S-2 Foundation Plan
23. Drawing S-3 Roof Framing Plan
24. Drawing S-4 Detail Page
25. Drawing S-5 Detail Page

Issued for Permit CIVIL DRAWINGS by Haeger Engineering dated 9/25/07

26. Sheet 1 Title Sheet
27. Sheet 2 General Notes
28. Sheet 3 Existing Conditions/Demolition Plans
29. Sheet 4 Geometry/Paving Plans
30. Sheet 5 Utility Plan
31. Sheet 6 Grading Plan
32. Sheet 7 Stormwater Pollution Prevention Plan
33. Sheet 8 Standard Details
34. Sheet 9 Standard Details
35. Sheet 10 Standard Details

Exhibit B

Schedule of Values

North Shore Ice Centre

City/State: Northbrook, IL Job #: 902-73

Ryan Companies US, Inc.

EXHIBIT "B"

Division Totals: 10/25/07

Div#	Description	Ice Rink Facility Totals	%	$/GSF	Project Total Totals	%	$/GSF
1	General Conditions/Requirements	$ 334,138	4.5%	$7.18	$ 334,138	4.5%	$ 7.18
2	Site Construction	$ 1,147,663	15.5%	$24.67	$ 1,147,663	15.5%	$24.67
3	Concrete	$ 879,160	11.8%	$18.90	$ 879,160	11.8%	$18.90
4	Masonry	$ 580,912	7.8%	$12.49	$ 580,912	7.8%	$12.49
5	Metals	$ 437,480	5.9%	$9.40	$ 437,480	5.9%	$9.40
6	Wood & Plastics	$ 45,620	0.6%	$0.98	$ 45,620	0.6%	$0.98
7	Thermal & Moist Prot	$ 225,176	3.0%	$4.84	$ 225,176	3.0%	$4.84
8	Doors & Windows	$ 168,910	2.3%	$3.63	$ 168,910	2.3%	$3.63
9	Finishes	$ 259,135	3.5%	$5.57	$ 259,135	3.5%	$5.57
10	Specialties	$ 81,116	1.1%	$1.74	$ 81,116	1.1%	$1.74
11	Equipment	$ 105,000	1.4%	$2.26	$ 105,000	1.4%	$2.26
13	Special Construction	$ 255,000	3.4%	$5.48	$ 255,000	3.4%	$5.48
15	Mechanical	$ 1,615,750	21.8%	$34.73	$ 1,615,750	21.8%	$34.73
16	Electrical	$ 433,500	5.8%	$9.32	$ 433,500	5.8%	$9.32
20	Des, Permits, Fees, QA	$ 679,946	9.2%	$14.62	$ 679,946	9.2%	$14.62
27c	Contingency	$ 171,204	2.3%	$3.68	$ 171,204	2.3%	$3.68
	SUBTOTAL:	$ 7,419,711	100.0%	$159.48	$ 7,419,711	100.0%	$159.48
28a	Construction Overhead	$ 148,394	1.9%	$3.19	$ 148,394	1.9%	$3.19
28b	Contractor's Fee (Lump Sum)	$ 370,986	4.8%	$7.97	$ 370,986	4.8%	$7.97
	SUBTOTAL:	$ 519,380		$11.16	$ 519,380		$11.16
		$ (193,493)			$ (193,493)		
	TOTAL	$ 7,745,598		$170.65	$ 7,745,598		$170.65
	Gross SF	46,523			46,523		
	$/GSF	$ 166.49			$ 166.49		

Exhibit C
Design-Builder's Personnel Billing Schedule

Classification	Rate

Exhibit "C"
Northbrook Sports Center
Design-Builder's Personnel Billing Schedule

CLASSIFICATION	RATE
PROJECT ARCHITECT/PRINCIPAL:	$185.00/HR.
ASSOCIATE ARCHITECT:	$135.00/HR.
CADD TECHNICIAN:	$45.00/HR.
SPECIFICATION WRITER:	$40.00/HR.
ADMINISTRATIVE:	$35.00/HR.
CLERICAL:	$28.00/HR.
CONSTRUCTION PROJECT MANAGER:	$85.00/HR.
CONSTRUCTION SUPERINTENDENT:	$94.00/HR.